

Tentative Rulings for June 23, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG05021 *Truezhay Edwards v. GS Freight, Inc.* is continued to Thursday, June 25, 2026, at 3:30 p.m. in Department 502.

24CECG04901 *Jason Williams v. Manuel Hagop Afarian, M.D.* is continued to Tuesday, July 7, 2026, at 3:30 p.m. in Department 502.

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(03)

Tentative Ruling

Re: ***Tisdale v. CMC/CCMC/Clovis Community Med. Center Legal Department***
Case No. 26CECG00022

Hearing Date: June 23, 2026 (Dept. 502)

Motion: Defendant Clovis Community Medical Center's Demurrer to Complaint

If oral argument is timely requested, it will be entertained on Wednesday, July 8, 2026, at 3:30 p.m. in Department 502.

Tentative Ruling:

To sustain defendant's demurrer to the entire complaint, with leave to amend, for failure to state facts sufficient to constitute a cause of action and uncertainty. (Code Civ. Proc., § 430.10, subds. (e), (f).) Plaintiff shall serve and file her first amended complaint within 20 days of the date of service of this order. All new allegations shall be in **boldface**.

Explanation:

Plaintiff has filed a form complaint for breach of contract. Establishing a claim for breach of contract requires a showing of "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800, quoting *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820.) Here, plaintiff does not allege the existence of a contract between the parties, nor does she allege whether the contract was written, oral, or implied by conduct. She alleges no facts regarding the essential terms of the contract, nor has she alleged that she performed under the contract or that defendants breached the agreement and damaged her. Therefore, the complaint fails to state a claim for breach of contract.

The complaint also fails to properly name any defendants. Plaintiff has named "CMC/CCMC" and "Clovis Community Med. Center Legal Department" as defendants. However, giving only abbreviated names for two of the defendants is insufficient to properly name them as parties to the case. To the extent that plaintiff is seeking to name Clovis Community Medical Center as a defendant, she needs to name the hospital properly using its full name. Also, it does not appear that the "Legal Department" of Clovis Community Medical Center is a proper defendant, especially since plaintiff has not alleged any facts to support a claim against the lawyers for Clovis Community. The complaint is thus vague and uncertain with regard to which defendants are being named.

However, plaintiff has not explained how these facts might tend to support any particular cause of action. For example, if she is attempting to state a claim for medical negligence, what did defendant do to breach a duty of care that it owed to her, and how she was injured as a result of defendant's breach? (*Turpin v. Sortini* (1982) 31 Cal.3d 220, 229-230 stating the elements of a medical negligence cause of action are "(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence.") If plaintiff is seeking to allege medical battery, she would need to allege facts showing that she gave conditional consent to the hospital to allow her to be treated, that defendant's staff violated the conditional consent while providing treatment, and that she was harmed as a result of the violation of the condition. (*Piedra v. Dugan* (2004) 123 Cal.App.4th 1483.) Again, plaintiff has not alleged facts to support any medical battery claim, and her complaint is so vague as to be uncertain.

Therefore, plaintiff's complaint is uncertain and fails to state facts sufficient to constitute any valid causes of action. As a result, the court intends to sustain the demurrer to the entire complaint. However, the court intends to grant leave to amend, as it is possible that plaintiff might be able to allege more facts to state a claim against defendant if given leave to do so.

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(03)

Tentative Ruling

Re: **Arredondo v. Saint Agnes Medical Center**
Case No. 25CECG04529

Hearing Date: June 23, 2026 (Dept. 502)

Motion: Plaintiff's Motions to Compel Further Responses to Form Interrogatories (Set One), and Requests for Admission (Set One), and for Sanctions

**If oral argument is timely requested, it will be entertained on
Wednesday, July 8, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To deny plaintiff's motion to compel further responses to form interrogatories, and her request for monetary sanctions against defendant. (Code Civ. Proc., §§ 2030.300; 2031.310; 2033.290.)

Explanation:

The court intends to deny plaintiff's motion to compel further responses, as well as the request for sanctions. Plaintiff did not obtain leave of court before filing her motion to compel further responses, so the court will not hear its merits.

Under Fresno Superior Court Local Rules, rule 2.1.17 A, "No motion under sections 2017.010 through 2036.050, inclusive, of the California Code of Civil Procedure shall be heard in a civil unlimited case unless the moving party has first requested an informal Pretrial Discovery Conference with the Court and such request has either been denied **and permission to file the motion is granted via court order...**" (Emphasis added.) The rule applies to motions to compel further responses.

Here, plaintiff filed a request for a pretrial discovery conference with the court, and the court denied the request on February 9, 2026 for failure to adequately meet and confer on the dispute. (See Minute Order dated February 9, 2026.) However, the court did not expressly grant leave to file the motion to compel. The box that would allow plaintiff to file her motion was left blank. (*Ibid.*) Therefore, plaintiff did not receive permission from the court to bring her motion to compel further responses, and the motions are not properly before the court. As a result, the court will not hear the merits of the motion. Instead, the court intends to deny the motion for failure to obtain leave to file them.

The court will also deny plaintiff's request for monetary sanctions, as plaintiff has not prevailed on the underlying motion to compel so there is no basis for a sanctions order. In addition, even if the motion had been granted, the court would still deny the request for sanctions because plaintiff is in *pro per*, and thus she is not entitled to recover attorney's fees for her work done on the motions. (*Trope v. Katz* (1995) 11 Cal.4th 274,

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 6-22-26
(Judge's initials) (Date)